

The Koraput Public Ferries Rules, 1941

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Rule THE-KORAPUT-PUBLIC-FERRIES-RULES-1941 of 1941

Published on 24 June 1941

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The Koraput Public Ferries Rules, 1941

Published vide Notification No. 2461-L.S.G., dated 24th June, 1941, Orissa Gazette Part-3/4.7.1941

Notification No. 2461-L.S.G., dated 24th June, 1941. - In exercise of the powers conferred by Section 16 of the Canals and Public Ferries Act, 1890 (Madras Act 11 of 1890), and in supersession of all previous rules on the subject, the Governor of Orissa is hereby pleased to make the following rules in respect of public ferries in the district of Koraput, namely:

1.

The renter shall provide himself with boats in good condition and keep them in good repair. He shall ply his boats between certain fixed points which will be specified in the sale notification and shall not take over land passengers except at these points.

2.

The renter shall have a sufficient number of boats in readiness at each side of the ferry and shall take care that mails, passengers, animals and goods are not unnecessarily delayed, whether by day or by night, but are ferried over in expedition. If the renter fails to transport across the ferry and mails, passengers, animals or goods awaiting transport, without an amount of delay which, in the opinion of the Collector, is unreasonable, the Collector shall have the right to supplement the ferry accommodation in such manner, to such extent and for such period as he thinks fit. In such event the renter shall not be entitled to any compensation.

3.

Every passenger will be allowed to carry with him his luggage, not exceeding a cooly load or one Indian maund in weight free. Any quantity of luggage in excess of this limit shall be charged at the rates prescribed for goods.

4.

No toll shall be demanded in the following cases :

(a)

Government mails, stores and remittances and all persons, animals and vehicles employed in carrying the same.

(b)

All Government officials (including troops and their families) travelling on duty and also, in the case of Police Officers, prisoners and property in their custody.

(c)

All parties employed by Government servants to carry official reports and records when so carrying such reports and records.

(d)

All servants of local boards and municipal councils travelling on duty within their jurisdiction.

(e)

Such other persons as may from time to time be exempted by the Collector.

Explanation - The exemption of any person under this rule extends also to the animals and conveyances actually used by him in travelling and to his bona fide baggage.

5.

The Collector or such officer as he may appoint may, at any time and for any length of time, attach ferry boats for the conveyance of troops and in case of emergency of any other persons on the business of the Crown, their camp equipage and followers, and the renter and his servants shall give all reasonable assistance for the supply of such additional boats as are required to ensure their speedy and safe carriage. A reasonable deduction will be made from the annual rent for every such occasion. The Collector's decision as to what is a reasonable deduction shall be final.

6.

The Collector shall determine the weight of cargo and the number of passengers which each both can safely carry. He shall also prescribe the number and class of boats to be maintained by the renter and the number of men by whom they shall be worked. Two cooly loads may be taken as equal in weight to one passenger.

7.

The number of passengers and the weight of cargo which each boat can carry shall be legibly painted thereon in English and vernacular and no passengers or cargo in excess of the limit shall at any one place be allowed on the boat. The renter shall not use any boats other than the one marked as aforesaid.

8.

A renter shall not transfer or sub-rent his forms without the previous sanction of the President, District Board or the Chairman of a Municipal Council.

9.

In lieu of prosecution under Section 17 of the Act, the Collector may cancel the lease for a breach of any of the above rules, recovering the balance of the rent for the year, or in lieu thereof recover from the renter a penalty not exceeding Rs. 5 (rupees five) for each such breach.

10.

Vessels or other articles confiscated under the Act shall be sold under the orders of the Collector.

11.

The word 'Collector' used in the foregoing rules includes the President of a Local Board or the Chairman of a Municipal Council in respect of any public ferry, the management of which has been assigned to a local board or Municipal Council

under Section 11 of the Act.

12.

These rules shall be exhibited to public view in English and the vernacular of the district on each side of the ferry.

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